MAHATMA GANDHI UNIVERSITY, KOTTAYAM

MGU-UGP (HONOURS) Regular EXAMINATION October 2025

Third SEMESTER

MG3VACSDV200 - HUMAN RIGHTS AND THE ENVIRONMENT
(2024 ADMISSION ONWARDS)

Duration: 1 Hour 30 Minutes **Maximum Marks: 50**

Remember(K), Understand(U), Apply(A), Analyze (An), Evaluate(E), Create(C), Skill(S), Interest(I) and Appreciation (Ap)

Answer Key

Part A – Very Short Answers (2 marks each) Answer any 5 Questions

1. Which rights are considered second generation?
   → *Economic, Social and Cultural Rights* - including right to work, education, health, housing, and social security.
2. What is the purpose of World Heritage Sites?
   → To preserve cultural, natural, and mixed heritage of outstanding universal value for future generations (UNESCO 1972 Convention).
3. What is the full form of WGEEP?
   → *Western Ghats Ecology Expert Panel.*
4. Which Article empowers the State to make special provisions for OBCs?
   → *Article 15(4)* of the Indian Constitution.
5. What percentage of India's irrigation depends on groundwater?
   → Approximately *60–65%* of irrigation in India depends on groundwater.
6. Which Article prohibits *untouchability*?

→ *Article 17* of the Indian Constitution.

7. Which Act ensures maternity benefits?
   → *The Maternity Benefit Act*

Part B – Short Answers (5 marks each) Answer any 4 Questions

1. How does waste management relate to human rights?

- Ensures *right to health* by preventing pollution-related diseases.
- Promotes *environmental justice* and safe living conditions.
- Upholds *right to life* under Article 21 of the Constitution.
- Protects vulnerable groups living near landfills or dumpsites.
- Encourages *sustainable development* and public participation.

2. How does right to freedom protect democracy?

- Guarantees *freedom of speech and expression* (Article 19).
- Allows *peaceful assembly* and *association*, essential for political participation.
- Ensures *freedom of movement* and *residence* across India.
- Provides *freedom of profession*, promoting individual liberty.
- Forms the *foundation of democratic governance* and accountability.

3. Briefly describe the public trust doctrine.

- Originates from *Roman Law* and *English Common Law*.
- States that certain resources (air, sea, forests, water) are held by the government in *trust* for public use.
- Recognized in Indian law through *MC Mehta vs Kamal Nath (1997).*
- Prevents state from transferring natural resources for private gain.
- Promotes *sustainable management and environmental protection.*

4. Why are human rights described as indivisible?

- Civil, political, economic, social, and cultural rights are *interdependent*.

Enjoyment of one right often depends on another (e.g., education → employment

- Recognized in *Vienna Declaration 1993*.
- Prevents prioritizing some rights over others.
- Reflects the holistic nature of human dignity.

5. What is the significance of SC/ST (Prevention of Atrocities) Act?

- Enacted in *1989* to prevent caste-based atrocities.
- Protects *scheduled castes and tribes* from discrimination and violence.
- Provides for *special courts* and *stringent punishment*.
- Ensures *social justice* and equality.
- Strengthens constitutional rights under *Articles 17 and 46.*

Part C – Essays (10 marks each) Answer any 2 Questions

1. Interrelation between human rights, environmental policy, and sustainable development

- The Right to Life under Article 21 of the Indian Constitution forms the foundation of this relationship. The Supreme Court has interpreted it to include the right to live in a clean and healthy environment, establishing that environmental protection is a *basic human right.*
- Environmental degradation directly violates fundamental human rights. Air and water pollution, deforestation, and climate change threaten essential human needs like food, health, and shelter, thereby undermining the dignity of life.

- Sustainable development connects human rights and environmental policy. It promotes balanced progress where economic growth does not harm ecological stability or human welfare.
- The Stockholm Declaration of 1972 was the first major international statement linking environmental protection with human well-being. It affirmed that every human being has a *fundamental right* to live in an environment that allows dignity and quality of life.
- The Rio Earth Summit (1992) further integrated environmental and developmental concerns. It emphasized that nations must pursue development without destroying the ecological systems on which life depends.
  Indian Constitutional provisions (Articles 48A and 51A(g)) embody these principles. Article 48A directs the State to protect and improve the environment, while Article 51A(g) makes it a duty of every citizen to safeguard nature - showing shared responsibility for environmental welfare.
- Human rights frameworks promote participation, awareness, and accountability in environmental governance. They encourage citizens to play an active role in decisions that affect natural resources and community health.
- The Right to Information Act (2005) and National Green Tribunal Act (2010) reinforce environmental accountability. These laws empower citizens to seek transparency and challenge violations affecting public health and ecology.
- Environmental protection upholds equality and justice. It safeguards marginalized and poor communities who suffer most from pollution, displacement, and resource exploitation.
- Media and NGOs act as social catalysts for awareness, advocacy, and monitoring of environmental issues. They connect civil society and the government, ensuring
  people's voices are heard.
- Sustainable development ensures intergenerational equity. It preserves natural resources for future generations, ensuring long-term human survival and well-being.

The interconnection between human rights, environmental policy, and sustainable development reflects a holistic approach to justice and life. Protecting the environment safeguards the *right to life*, while sustainable development ensures that progress today does

not endanger tomorrow. Thus, human rights and environmental protection are not separate goals - they are two sides of the same moral and constitutional vision of harmony between people and planet.

2. Historical development of human rights (Magna Carta to UDHR)

- The idea of human rights evolved gradually through centuries, shaped by struggles for justice, freedom, and equality. It began as privileges granted to a few but grew into universal principles recognizing the dignity of all people.
- The Magna Carta (1215) was the first landmark in this evolution. Signed by King John of England, it limited the arbitrary powers of the monarchy and protected individuals against unlawful imprisonment and taxation - the earliest foundation of *rule of law* and *personal liberty.*
- The Petition of Right (1628) further developed these principles. It declared that the king could not impose taxes or imprison citizens without Parliament's consent, reinforcing that government authority must be subject to law.
- The English Bill of Rights (1689) strengthened parliamentary democracy. It guaranteed freedoms such as free elections, speech in Parliament, and protection from cruel punishments, laying the foundation of constitutional governance.
- The U.S. Declaration of Independence (1776) marked a turning point in political philosophy. It proclaimed that *all men are created equal* and endowed with *unalienable rights* - life, liberty, and the pursuit of happiness - emphasizing natural and inborn rights.
- The French Declaration of the Rights of Man and of the Citizen (1789) expanded these ideals into Europe. It proclaimed liberty, equality, and fraternity as universal rights, asserting that sovereignty resides with the people, not with rulers.
- The 19th century witnessed major social transformations, including the *abolition of slavery*, *recognition of workers' rights*, and early movements for women's suffrage. These struggles extended human rights beyond political freedoms to social and economic justice.
- After World War I, the League of Nations (1919) was created to promote collective security and prevent wars. Though limited in power, it introduced the idea that international institutions could safeguard peace and human rights across nations.
- The United Nations Charter (1945), drafted after the horrors of World War II, reaffirmed faith in fundamental human rights, dignity, and equality. It recognized that peace and human rights are interdependent and must be promoted together.
- The Universal Declaration of Human Rights (UDHR) of 1948 became the first comprehensive statement of global human rights. Adopted by the United Nations General Assembly, it laid down 30 articles guaranteeing civil, political, social, cultural, and economic rights to all people, regardless of nation, race, or creed.

- The UDHR inspired legally binding covenants - ICCPR and ICESCR (1966) - which together form the *International Bill of Human Rights.* These documents institutionalized human rights as universal standards for nations and governments
- In conclusion, the historical evolution from the Magna Carta (1215) to the Universal Declaration of Human Rights (1948) signifies a profound transformation in the moral and political consciousness of humanity.
  It marks the gradual shift from exclusive privileges enjoyed by the ruling elite to the universal affirmation of human dignity, equality, and liberty as inherent and inalienable rights of every individual. This progression embodies the enduring pursuit of justice, the consolidation of democratic ideals, and the collective aspiration for global peace and human solidarity.

3. Role of CRC in advancing global child rights

- Adopted by UN in *1989*; ratified by nearly all nations.
- Ensures *right to survival, protection, development, and participation*.
- Legally binds states to protect children up to 18 years.
- Promotes education, healthcare, and protection from exploitation.
- Establishes *UN Committee on the Rights of the Child*.
- Influences national laws (e.g., JJ Act, POCSO in India).
- Introduced *Optional Protocols* on child soldiers and exploitation.
- Promotes child participation in policy decisions.
- Monitors periodic state reports for compliance.
- Strengthened the global framework for *child welfare and dignity*.